Discuss and Possibly Adopt Revisions to Board Policy GKDA (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy GKDA Non-school Use Of School Facilities: Distribution Of Non-school Literature

Explanation:
The Administration recommended revisions to Board Policy GKDA Non-school Use Of School Facilities: Distribution Of Non-school Literature. The Administration recommends that the updated Local Board Policy GKDA be adopted as presented.

Policy Reference: GKDA Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

Distribution of Nonschool Literature Permitted

Written or printed materials, handbills, photographs, pictures, films, tapes, or other visual or auditory materials not sponsored by the District or by a District-affiliated school-support organization shall not be sold, circulated, distributed, or posted on any District premises by any District employee or by persons or groups not associated with the District, except in accordance with this policy.

The District shall not be responsible for, nor shall the District endorse, the contents of any nonschool literature distributed on any District premises.

[See CPAB regarding use of the District's internal mail system and FNAA regarding distribution of nonschool literature by students]

Limitations on Content

Nonschool literature shall not be distributed on District property if:

1. The materials are obscene, vulgar, constitute Prohibited Materials as that term is defined herein, or are otherwise inappropriate for the age and maturity of the audience.
2. The materials endorse actions endangering the health or safety of students.
3. The materials promote illegal use of drugs, alcohol, or other controlled substances.
4. The distribution of such materials would violate the intellectual property rights, privacy rights, or other rights of another person.
5. The materials contain defamatory statements about public figures or others.
6. The materials advocate imminent lawless or disruptive action and are likely to incite or produce such action.
7. The materials are hate literature or similar publications that scurrilously attack ethnic, religious, or racial groups or contain content aimed at creating hostility and violence, and the materials would materially and substantially interfere with school activities or the rights of others.
8. There is reasonable cause to believe that distribution of the nonschool literature would result in material and substantial interference with school activities or the rights of others.
9. The materials are for political campaigns, except as allowed on election day at polling places.
10. The materials promote concepts described in the prohibited concepts of Board Policies EFA (Local), EFB (Local), EMB (Local) and EMI (Local).

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Prior Review

All nonschool literature intended for distribution on school campuses or other District premises under this policy shall be submitted to the campus principal and/or the District communications department for prior review in accordance with the following:

1. Materials shall be submitted to each campus principal for review if the materials are intended for the students and/or staff of that school.
2. Materials shall be submitted to the District communications department for review if the materials are intended for distribution to the employees at any other District facility other than a school campus.
3. Materials shall include the name of the person or organization sponsoring the distribution.
4. Using the standards found in this policy at Limitations on Content, the campus principal and/or the District communications department shall approve or reject submitted materials within five school days of the time the materials were received.

Exceptions to Prior Review

Prior review shall not be required for distribution of nonschool literature in the following circumstances:

1. Distribution of materials by an attendee to other attendees at a school-sponsored meeting intended for adults and held after school hours;
2. Distribution of materials by an attendee to other attendees at a community group meeting held in accordance with GKD(LOCAL) or a noncurriculum-related student group meeting held in accordance with FNAB(LOCAL); or

3. Distribution for electioneering purposes during the time a school facility is being used as a polling place in accordance with state law [see BBBA].

All nonschool literature distributed under these exceptions shall be removed from District property immediately following the event at which the materials were distributed.
Even when prior review is not required, all other provisions of this policy shall apply.

Time, Place, and Manner Restrictions

Except as provided at FNAA(LOCAL), classrooms and hallways shall not be used during the school day for the distribution of any nonschool literature over which the District does not exercise control.

Each campus principal shall designate times, locations, and means by which nonschool literature that is appropriate for distribution, as provided in this policy, may be made available or distributed to students or others at the principal's campus.

The District communications department shall designate times, locations, and means for distribution of nonschool literature at District facilities other than school campuses, in accordance with this policy.

Violations of Policy

Failure to comply with this policy regarding distribution of nonschool literature shall result in appropriate administrative action, including but not limited to confiscation of nonconforming materials and/or suspension of use of District facilities. Appropriate law enforcement officials may be called if a person refuses to comply with this policy or fails to leave the premises when asked. [See GKA]

Appeals

Decisions made by the administration in accordance with this policy may be appealed in accordance with the appropriate District complaint policy. [See DGBA or GF]

Superintendent Authority

The Superintendent shall develop policies and procedures to ensure compliance with this Policy.
The Superintendent shall certify to the Board of Trustees that the District complies with this Policy not later than February. 1, 2026.